

STATE OF MICHIGAN
IN THE CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

Case No. 2023-5907-PP
Hon. Jenny L. McNeill

EMILY A. WATSON,
Petitioner,

v.

ANDREW JAMES PIGORS,
Respondent.

FAMILY DIVISION

ANDREW J. PIGORS,

EMILY A. WATSON,

Hon. Jenny L. McNeill

**MOTION FOR DISQUALIFICATION OF JUDGE JENNY L. McNEILL
PURSUANT TO MCR 2.003**

I. INTRODUCTION

1. This Motion is brought pursuant to **MCR 2.003(C)(1)**, which provides that a judge is disqualified when the judge is biased or prejudiced for or against a party or attorney, or when the judge's impartiality might reasonably be questioned.
2. This Motion is supported by an Affidavit of Bias (Exhibit A), a Statistical Analysis of Judicial Conduct (Exhibit B), and a comprehensive Exhibit Index cataloguing all supporting evidence.

II. GROUNDS FOR DISQUALIFICATION

A. MCR 2.003(C)(1)(a) — Personal Bias or Prejudice

1. Systematic Ex Parte Adjudication (18.26% Rate — 3.65× Normal)

2. Seven Show Cause Proceedings — Pattern of Weaponization

#	Disposition
1	Dismissed
2	Dismissed
3	Mooted

4	14 days jail
5	Pending
6	Pending
7	45 days jail

(See Exhibit C — Hearing Transcript References)

4. Filing Deposit Barrier

(See Exhibit D — Order Imposing Filing Deposit)

(See Exhibit E — Hearing Transcript Reference)

6. Incarceration Without Proper Contempt Safeguards

 a. Adequate notice of the specific charges;

 b. The right to counsel under *Mead v Batchlor*, 435 Mich 480; 460 NW2d 493 (1990);

 c. The opportunity to present a defense;

 d. The opportunity to purge the contempt.

7. Acting on Manufactured Evidence

(See Exhibit F — NSPD Report NS2505044)

B. MCR 2.003(C)(1)(b) — Impartiality Reasonably Questioned

16. A reasonable, objective person, fully informed of all the circumstances, would entertain a significant doubt that Judge McNeill could maintain impartiality. *See In re Contempt of Henry*, 282 Mich App 656, 671; 766 NW2d 44 (2009) ("The question is whether a reasonable person, knowing all the circumstances, would harbor doubts about the judge's impartiality.").

17. The following facts would cause any reasonable person to question the Court's impartiality:

 a. **18.26% ex parte order rate** — 3.65× the normal rate for Michigan family courts;

 b. **229+ consecutive days** of total parenting time deprivation between a father and his 3-year-old son;

 d. **59 days of incarceration** without proper contempt safeguards;

 f. **\$250 filing deposit barrier** imposed on an indigent litigant;

 g. Court **acted on manufactured evidence** (NSPD NS2505044) without scrutiny;

 h. PPO 2023-05907-PP entered as **"NOT SERVED"** yet used as basis for restrictions.

(See Exhibit B — Statistical Analysis of Judicial Conduct)

III. LEGAL STANDARD

18. Under **MCR 2.003(C)(1)**, a judge is disqualified when:

 (a) The judge is biased or prejudiced for or against a party
or attorney; or

(b) The judge, based on objective and reasonable perceptions, has either (i) a serious risk of actual bias impacting the due process rights of a party as enunciated in *Caperton v A.T. Massey Coal Co.*, 556 US 868 (2009), or (ii) has failed to adhere to the appearance of impropriety standard as set forth in Canon 2 of the Michigan Code of Judicial Conduct.

19. The test is whether the judge's conduct "would create in reasonable minds a perception that the judge's ability to carry out judicial responsibilities with integrity, impartiality and competence is impaired." *Crompton v Dep't of State*, 395 Mich 347, 351 (1975).

20. A pattern of one-sided rulings can cumulatively establish bias. *Armstrong v Ypsilanti Charter Twp*, 248 Mich App 573, 597 (2001).

21. The appearance-of-impropriety standard does not require proof of actual bias. *In re Contempt of Henry*, 282 Mich App at 671.

22. The Michigan Supreme Court has emphasized that the appearance-of-impropriety standard serves a prophylactic function — protecting the integrity of the judicial system. *Cain v Dep't of Corrections*, 451 Mich 470, 497 (1996).

23. In contempt proceedings resulting in incarceration, Michigan law requires heightened procedural protections. *In re Contempt of Dougherty*, 429 Mich 81, 95 (1987). The failure to provide these protections independently warrants disqualification.

IV. ARGUMENT

A. The Pattern of One-Sided Adjudication Compels Disqualification

25. The pattern includes:

 b. Parenting time was ordered, then suspended via ex parte order without MCR 3.207(B) findings;

 e. Financial barriers (\$250 deposit) were imposed on an indigent pro se litigant;

 f. AI legal research was disparaged rather than substantively evaluated;

 g. Manufactured evidence (NSPD NS2505044) was accepted without scrutiny.

26. *Armstrong v Ypsilanti Charter Twp*, 248 Mich App 573, 597 (2001), recognizes that a pattern of adverse rulings, combined with other indicators of bias, supports an inference of personal bias or prejudice.

B. The Ex Parte Rate Is Independently Disqualifying

C. The Incarceration Without Safeguards Demonstrates Bias

D. Cumulative Error Requires Disqualification

30. Even if no single category of violation independently compels disqualification, the cumulative effect requires it. Michigan recognizes the cumulative error doctrine. *See Cain v Dep't of Corrections*, 451 Mich 470, 497 (1996).

31. The cumulative record includes:

Category	Finding
Ex parte orders entered	24 of 131 (18.26% — 3.65× normal)
Days of incarceration (contempt)	59
Consecutive days of zero parenting time	215+
Documented interference incidents (unaddressed)	305
Jobs lost to incarceration	3
Months of homelessness	3
Times muted during proceedings	3
Filing deposit imposed	\$250
Manufactured evidence acted upon	NSPD NS2505044
PPO status	"NOT SERVED" — still enforced

V. PRAYER FOR RELIEF

1. **GRANT** this Motion for Disqualification of Judge McNeill pursuant to MCR 2.003(C)(1)(a) and (b);

2. **ORDER** the reassignment of Case Nos. 2024-001507-DC and 2023-5907-PP to a different judge within the 14th Judicial Circuit, or to a visiting judge if no other judge is available;

5. **GRANT** such other and further relief as this Court deems just and equitable.

PROPOSED ORDER OF DISQUALIFICATION

FAMILY DIVISION

ORDER OF DISQUALIFICATION AND REASSIGNMENT

At a session of said Court, held in the Courthouse in the City of Muskegon, County of Muskegon, State of Michigan, on the _____ day of _____, 20____.

PRESENT: HON. _____, **Circuit Court Judge**

THE COURT FINDS:

2. Reassignment is necessary to preserve the integrity of these proceedings and the parties' right to an impartial tribunal.

IT IS HEREBY ORDERED:

1. The Honorable Jenny L. McNeill is hereby **DISQUALIFIED** from further proceedings in Case Nos. 2024-001507-DC and 2023-5907-PP.
2. These matters are hereby **REASSIGNED** to the Honorable _____
[or to a visiting judge assigned by the State Court Administrator].
3. All ex parte orders entered without proper notice and hearing are hereby **VACATED**, and the newly assigned judge shall conduct a prompt review of all outstanding orders.

IT IS SO ORDERED.

Hon. _____, Circuit Court Judge

Date: _____

VERIFICATION

CERTIFICATE OF SERVICE

I hereby certify that on _____, 20____, I served a true and correct copy of this Motion for Disqualification of Judge, Affidavit of Bias, Statistical Analysis, and all Exhibits upon:

Emily A. Watson

2160 Garland Drive

Norton Shores, MI 49441

by the following method(s):

■ First-class U.S. Mail, postage prepaid

■ Personal delivery

■ Email

Andrew J. Pigors, *In Propria Persona*

1977 Whitehall Road, Lot 17

North Muskegon, MI 49445

(231) 903-5690

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EXHIBIT INDEX

Exhibit	Description
A	Affidavit of Bias
B	Statistical Analysis of Judicial Conduct (18.26% Ex Parte Rate)
C	Hearing Transcript References — Muting Incidents (3 Occasions)
D	Order Imposing \$250 Filing Deposit
E	Hearing Transcript Reference — AI Research Disparagement
F	NSPD Incident Report NS2505044 (Albert Watson Statement)
G	Show Cause Proceedings Summary (7 Proceedings — Disposition Table)
H	PPO 2023-05907-PP Docket — "NOT SERVED" Status
I	Employment Loss Documentation (3 Jobs)
J	Parenting Time Denial Calendar (229+ consecutive days)